
ORDINANCE NO. 26-002

**AN ORDINANCE OF THE COUNTY OF ORANGE, STATE OF
CALIFORNIA, AMENDING SECTIONS 3-14-2 THROUGH 3-14-16, 5-1-31, 5-1-33 AND
7-9-103 OF THE CODIFIED ORDINANCES OF THE COUNTY OF ORANGE**

**NOW, THEREFORE, THE BOARD OF SUPERVISORS OF THE COUNTY OF ORANGE
DOES ORDAIN AS FOLLOWS:**

SECTION 1. Section 3-14-2 through 3-14-16 is hereby to read in its entirety as follows:

Sec. 3-14-2. Authority and purpose.

The procedure set forth in this article for abatement of nuisances and the making of the cost of abatement of a public nuisance which exists on a parcel of land a special assessment against that parcel is adopted pursuant to Government Code section 25845 and article 11, section 7 of the California Constitution. The procedure set forth in this article for abatement applies to any matter which is determined to be a nuisance.

The procedure set forth in this division is not exclusive and is in addition to the procedure for abatement which is conferred upon the County by Civil Code section 3494, Code of Civil Procedure section 731, and any other applicable provision of law.

(Ord. No. 3608, § 1, 12-17-86)

Sec. 3-14-2.5. Abatement Warrants and Summary Abatement.

Initiation of proceedings under this Article is not required prior to abatement of the nuisance where the nuisance presents a threat to the public health and safety as contemplated by Sections 3-13-3, 3-14-3, 3-14-8, 7-1-16, 7-1-811, 7-9-103, 7-9-130.3 of these Ordinances, or where the Director, in coordination with County Counsel, obtains a nuisance inspection and abatement warrant pursuant to Civil Code section 1822.50, et seq. In such cases, the opportunity for an administrative hearing and opportunity to contest the finding that there is a nuisance may occur after the abatement of the nuisance is complete. In urgent situations where the County seeks an inspection and nuisance abatement warrant, the Director or designee shall inform the issuing court that the interested parties shall be provided with notice and an opportunity to be heard regarding the abatement by the County post-abatement. In cases where the County pursues summary abatement on the basis that the nuisance is a threat to public health and/or safety, the Director or designee shall provide the interested parties with notice and an opportunity to be heard regarding the summary abatement post-abatement.

- (a) Abatement Warrant. In compliance with the requirements of this Section, the Director or any enforcement officer may seek and obtain an abatement warrant from a court of competent jurisdiction to abate any nuisance condition as defined by Section 1-1-40.15, subdivision (b), Section 7-1-16, subdivision (a), and Section 7-9-130.3, subdivision (b) of these Ordinances. Upon the issuance of an abatement warrant by the court, the conditions may be abated by County personnel or by a private

contractor hired by the County for that purpose, subject to the requirements of the warrant and these Ordinances. The Director shall give all interested parties notice of the County's abatement not less than 24 hours prior to conducting the abatement, unless the warrant authorizes immediate abatement without notice.

1. After the abatement authorized by a court-issued warrant is completed, a warrant return describing the work performed and providing an itemized accounting of the total abatement and administrative costs shall be prepared by the Director. The report shall contain the names and addresses of the interested parties, the name and address of the property owner, and a description of the nuisance property sufficient to identify the property, including the Assessor's Parcel Number and commonly known address of the property.
- (b) Summary Abatement. Whenever the Director or Building Official determines that an imminent threat to public health and/or public safety exists that requires immediate correction or elimination, the Director or Building Official may cause the hazard or nuisance to be summarily abated by County personnel or a private contractor hired by the County for that purpose. The Director or Building Official shall pursue only the minimum level of correction or abatement that is necessary to eliminate the imminent hazard. The Director or Building Official may exercise the following powers to summarily abate a hazard or nuisance, as contemplated by Sections 1-1-40.15, 7-1-16, and 7-9-103 of these Ordinances:
1. Order any tenants to vacate a property and prohibit occupancy until repairs are completed.
 2. Condemn, red-tag, or post the premises as unsafe, substandard, or dangerous.
 3. Board, fence, or secure the building or site per County or state requirements.
 4. Raze and grade that portion of the building or site as necessary to prevent risk of collapse.
 5. Make any emergency repairs as necessary to eliminate any immediate threat to public health and/or safety.
 6. Take any other action deemed by the Director or Building Official to be reasonably appropriate under the circumstances.
- (c) Personal Property. If any personal property is altered or removed during the course of a summary abatement or abatement authorized by a court-issued warrant, written notice shall be provided to all interested parties and conspicuously posted in the area where the personal property was located. The written notice shall contain the following:
1. The date and approximate time that the personal property was altered or removed.
 2. A general description of the personal property that was altered or removed.
 3. A statement identifying how the personal property was removed or altered and the reason therefore.

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4. The address at which the personal property may be retrieved, including the phone number and/or email address through which a person may receive information regarding the personal property and how to retrieve it.
 5. A statement indicating whether the personal property can be immediately retrieved or whether the interested party must request a post-removal hearing at which it will be determined whether the personal property will be returned, unless immediate destruction is necessary to protect public health and/or public safety.
 6. A statement that if the personal property is not retrieved within 45 days of the notice, or, if a post-removal hearing is necessary, if a hearing is not requested within 45 days of the notice, the property will be deemed abandoned and forfeited, and the property may thereafter be discarded or destroyed.
- (d) Cost Recovery. Costs incurred by the County in the course of summary abatement and/or abatement of a nuisance pursuant to a court-issued abatement warrant shall be assessed, collected, and recovered against the nuisance property and from the responsible parties.
- (e) This summary abatement and nuisance abatement warrant procedure are not exclusive and the Director and/or Building Official may also pursue any other administrative, criminal, or civil remedies available for such nuisance violations.

Sec. 3-14-3. Determination of nuisance.

The Director of Orange County Public Works or designee may determine that any premises within the unincorporated area of the County of Orange constitutes a public nuisance pursuant to any provision of law, including but not limited to Civil Code sections 3479 and 3480, and may initiate proceedings pursuant to this article. The authority of the Director shall, however, be limited to those types of matters set forth in these Codified Ordinances and to those other specific matters as to which the board of supervisors may direct that proceedings be initiated. The Director shall issue a letter of determination which shall identify the premises and state the conditions which constitute the nuisance and shall request that such conditions be corrected within a stated period of time, not less than fifteen days. The letter of determination shall be mailed to the responsible parties, including but not limited to the owner and occupant of the premises. If the conditions are not remedied within the stated time, the Director may schedule a hearing to determine whether or not a nuisance exists.

(Ord. No. 3608, § 1, 12-17-86)

Sec. 3-14-4. Service of notice of hearing and letter of determination.

When a hearing is scheduled, the Director shall serve on the responsible parties, including but not limited to the owner and occupant of the subject premises, a copy of the letter of determination and a notice of hearing in substantially the form set forth in section 3-14-5, and a copy of this article. The letter of determination and notice may be served by any of the following methods:

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- Personal service
 - First-class mail or certified mail, return receipt requested.
 - For any party that resides at, or occupies, the nuisance property, by posting the notice in a conspicuous place at the entrance to the nuisance property.
 - For any party registered with the Secretary of State, by certified mail to that party's agent for service of process at the address registered with the Secretary of State, or as otherwise permitted by law. For any party required to register with the Secretary of State that has not designated an agent for service of process with the Secretary of State, then a notice may be served on that party by certified mail to the Secretary of State.
 - If a valid address for any party cannot be determined, then by posting in a conspicuous place at the entrance to the nuisance property.
 - By email when a valid email address is provided by that party.
 - In any other manner reasonably calculated to effectuate notice.

Service by posting, personal delivery, or electronic delivery shall be deemed effective at the time of posting or delivery. Service by mail in any manner described in this Section shall be deemed effective upon deposit in the mail. In all cases, notice under this section shall be provided, at minimum, to the owner of the premises as shown on the latest equalized assessment roll and shall be posted in a conspicuous location on the subject property not less than thirty (30) calendar days prior to the date of the hearing.

(Ord. No. 3608, § 1, 12-17-86)

Sec. 3-14-5. Notice of hearing.

The notice referred to in section 3-14-4 shall be in substantially the following form:

"Notice is hereby given that on the ____ day of _____, the Director of Orange County Public Works determined that a nuisance subject to abatement may exist on the following described premises. On the ____ day of _____, _____ at the _____, located at _____, a hearing will be held before a hearing officer appointed by the Orange County Board of Supervisors to determine whether a public nuisance exists on the premises. If the premises, in all or in part, is found to constitute a public nuisance and if the same is not promptly abated by the owner, such nuisance may be abated by the County, in which case the costs of such abatement will be assessed upon such premises and such costs will constitute a lien upon such land until paid.

"The premises are described as follows: ."

(Ord. No. 3608, § 1, 12-17-86)

Sec. 3-14-6. Hearing.

At the time fixed in the notice, the hearing officer appointed by the Board of Supervisors shall hear testimony regarding the alleged nuisance, including the estimated cost of its abatement and any other matter which may be pertinent. At the conclusion of the hearing, the hearing officer shall determine based on a preponderance of evidence whether or not a nuisance exists; and, if the hearing officer so concludes, he may declare the conditions existing to be a nuisance and order the person owning or occupying the property upon which the nuisance exists to abate it. Such order shall be posted in a conspicuous location on the subject premises, and the owner or occupant of the property shall be required to abate the nuisance, if one is found to exist, within thirty (30) days of the posting of the order on the premises. The decision of the hearing officer shall be in writing and shall be final upon service of a copy of the decision and order in accordance with section 3-14-4.

During the existence of a state or local emergency declaration that affects the ability to safely conduct an in-person hearing, the hearing officer may conduct the hearing by electronic means or by phone.

(Ord. No. 3608, § 1, 12-17-86)

Sec. 3-14-7. Extension of time.

The hearing officer may grant an extension of time to abate the nuisance if, in his opinion, good cause for an extension exists. The hearing officer may also continue the hearing and request additional evidence from the Director or the interested party prior to issuing a decision.

(Ord. No. 3608, § 1, 12-17-86)

Sec. 3-14-8. Abatement by County.

If the nuisance is not abated within the time identified in the hearing officer's order, County personnel or a private contractor hired by the County for that purpose may proceed to abate the nuisance, unless an appeal has been filed pursuant to section 3-14-13.

(Ord. No. 3608, § 1, 12-17-86)

Sec. 3-14-9. Record of costs of abatement.

The Director shall keep an itemized account of the costs involved in abating the nuisance. The Director shall post conspicuously on the property and shall also mail to the owner and occupant of the property a statement showing the cost of the abatement. The statement shall be accompanied by a notice to the owner and occupant that the cost of abatement may be protested as set forth in section 3-14-10. If the cost is not protested within ten (10) calendar days after it is mailed and posted on the premises, it shall be deemed final.

(Ord. No. 3608, § 1, 12-17-86)

Sec. 3-14-10. Hearing on statement of costs of abatement.

The owner or occupant may protest the cost of abatement by requesting a hearing before the hearing officer within ten (10) calendar days of when the statement of costs described in section 3-14-9 is mailed and posted on the premises. Upon receipt of such a request, the Director shall

schedule a hearing upon at least ten (10) calendar days' notice to the persons and in the manner provided in section 3-14-4. At the time fixed for the hearing on the statement of costs, the hearing officer shall consider the statement and protests or objections raised by the person liable to be assessed for the cost of the abatement. The hearing officer may revise, correct or modify the statement as he considers just and thereafter shall confirm the cost. The decision of the hearing officer shall be in writing and shall be served by one of the methods described in section 3-14-4. The decision shall be final upon mailing.

(Ord. No. 3608, § 1, 12-17-86)

Sec. 3-14-11. Special assessment.

If the property owner or occupant does not pay the cost of abating the nuisance within thirty (30) calendar days after the cost becomes final or after the cost has been confirmed by the Superior Court, if appealed, the cost of abatement shall become a special assessment against the property on which the nuisance was abated and a notice of lien recorded against the property. The assessment shall continue until it is paid, together with interest at the rate of seven (7) percent a year computed from the date of confirmation of the statement until payment. The assessment may be collected at the same time and in the same manner as ordinary municipal taxes are collected and shall be subject to the same penalties and the same procedure and sale in case of delinquency as provided for ordinary taxes. All acts applicable to levy, collection and enforcement of property taxes shall apply to this special assessment.

The County is entitled, and is hereby authorized, to recover all past due abatement costs, hearing costs, administrative fees, administrative fines, late fees, and collection costs by use of all available legal means, including, but not limited to, collection from the responsible parties and by lien or special assessment against the nuisance property. Each responsible party shall be jointly and severally liable to the County for all of the County's abatement costs. The procedures provided in this Section are in addition to all other remedies and cost recovery options available to the County in law or equity.

(Ord. No. 3608, § 1, 12-17-86)

Sec. 3-14-12. Notice of abatement lien.

For a special assessment for abatement costs against the nuisance property pursuant to section 3-14-11, the Clerk of the Board of Supervisors shall file in the office of the County Recorder a notice in substantially the following form:

"Under the authority of Government Code section 25845, the County of Orange did on _____, 20____, order abatement of a nuisance and on _____, 20____, did abate such nuisance upon the real property hereafter described and then on _____, 20____, did assess the cost of the abatement upon the real property. The record owner (or possessor) of such property was _____ (name and address). The County claims a special assessment on the real property for the cost of doing the work in the amount of \$_____. This amount is a special assessment against the real property until it is paid, with interest at the rate of seven (7) percent a year from _____, 20____ (insert date of confirmation of statement), and discharge of record. The real property referred to above, and upon which the special assessment is claimed is that certain parcel of land situated within the County of Orange, State of California, more particularly described as follows: ."

(Ord. No. 3608, § 1, 12-17-86)

Sec. 3-14-13. Appeals.

Within twenty (20) calendar days of the date of the delivery or mailing of the Hearing Officer's determination to the interested party, the interested party may contest that decision by filing an appeal with the Superior Court and paying the court clerk the filing fee established by Government Code section 53069.4, or any successor statute thereto. The failure to file the appeal and pay the filing fee within twenty (20) calendar days shall constitute a waiver of the right to appeal, and the Hearing Officer's determination shall become final. If an appeal is filed, the appellant shall serve a copy of the notice of appeal in person or by first class mail upon the Director.

(Ord. No. 3608, § 1, 12-17-86)

Sec. 3-14-14. Hearing officer.

A hearing officer shall be appointed by the Board of Supervisors to conduct hearings pursuant to this article as necessary, with the authorities granted by Government Code section 27721.

(Ord. No. 3608, § 1, 12-17-86)

Sec. 3-14-15. Procedure.

Formal rules of evidence shall not apply to hearings conducted pursuant to this article, and the hearing officer shall have the authority to issue subpoenas, receive evidence, and administer oaths, consistent with Government Code section 27721.

(Ord. No. 3608, § 1, 12-17-86)

Sec. 3-14-16. Other County officials authorized to use procedures.

Any County official charged with enforcement of any provisions of law which authorize abatement of nuisances may utilize the provisions of this article for such abatement. In such instances, the official shall have the same powers as those given by this article to the Director of Orange County Public Works.

(Ord. No. 3608, § 1, 12-17-86)

SECTION 2. Section 5-1-31 is hereby to read in its entirety as follows:

Sec. 5-1-31. Sale, distribution, commercial cultivation, delivery, manufacturing, and testing of cannabis or any other controlled substances.

- (a) Notwithstanding any other provision of this Code, no permit, license or other discretionary approval will be issued by the County of Orange, pursuant to any applicable section of the Orange County Codified Ordinances, or otherwise, that would permit the sale, distribution, commercial cultivation, manufacturing, and testing of cannabis or any other controlled substances, as defined herein, under local, state or federal law or which is illegal to sell or distribute under local, state or federal law.

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- (b) This section does not prohibit the issuance of permits, licenses, or approvals, which are otherwise expressly permitted under local, state or federal law.
 - (c) For the purposes of Sections 5-1-31 through 5-1-33 of this Code, the term "cannabis" shall have the same meaning as set forth in Section 7-9-103 of this Code, and as set forth in California Business and Professions Code section 26001, and shall mean "marijuana" as set forth in California Health and Safety Code Section 11018 and shall apply to cannabis used for any purpose, including medical.
 - (d) For the purposes of Sections 5-1-31 through 5-1-33 of this Code, the term "controlled substance(s)" shall mean any drug or chemical substance whose possession and use are illegal under local, state or federal law.

(Ord. No. 10-018, § 1, 12-7-10; Ord. No. 17-010 , § 2, 12-5-17)

SECTION 3. Section 5-1-33 is hereby to read in its entirety as follows:

Sec. 5-1-33. Civil fine; businesses selling or distributing cannabis or any other controlled substances.

- (a) Notwithstanding any other Code section or resolution on the subject, violation of section 5-1-32 of this Code shall be immediately subject to a fine of one thousand dollars (\$1,000.00) for each violation of section 5-1-32, and shall not exceed ten thousand (\$10,000) per day that a business, activity, or use operates in violation of section 5-1-32, and may be processed as set forth in section 1-1-40.15 of this Code. Fines authorized for violation of the County's Zoning Code and for violations of the Building Code may also be immediately imposed where such violations occurred in service of prohibited commercial cannabis activity in violation of section 5-1-32.
- (b) Fines authorized by this section may be immediately assessed against the property owner and each owner of the occupant business entity engaged in unlawful commercial cannabis activity in violation of section 5-1-32 and such persons shall be joint and severally liable to the County for the administrative fines and penalties, except as provided in section 5-1-33(c) of this Code.
- (c) Fines authorized by this section may not be immediately imposed, but a reasonable time to correct the violation will be allowed prior to the imposition of fines, where all of the following conditions are met:
 - 1. A tenant is in possession of the property;
 - 2. The rental property owner or agent can provide evidence that the rental or lease agreement prohibits commercial cannabis activity; and
 - 3. The rental property owner or agent did not know the tenant was engaging in commercial cannabis activity in violation of section 5-1-32 and no complaint, property inspection, or other information caused the rental property owner or agent to have actual notice of the unlicensed commercial cannabis activity.

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- (d) Interest shall accrue on delinquent fines and penalties at the rate of ten (10) percent for fines not paid within thirty (30) days of their due date.
 - (e) In addition to the fines authorized above, the County may also or alternatively immediately impose larger fines that are otherwise authorized by law or impose other or larger fines after notice and a reasonable time to correct.

(Ord. No. 10-018, § 3, 12-7-10; Ord. No. 17-010 , § 4, 12-5-17)

SECTION 4. Section 7-9-103 is hereby to read in its entirety as follows:

Sec. 7-9-103. County of Orange commercial cannabis activities and outdoor personal cultivation prohibition ordinance.

- (a) *Definitions.* For the purposes of this section, the following definitions shall apply:
 - (1) "*Cannabis*" or "*Marijuana*" means all parts of the plant *Cannabis sativa* Linnaeus, *Cannabis Indica*, or *Cannabis ruderalis*, whether growing or not; the seeds thereof; the resin, whether crude or purified, extracted from any part of the plant; and every compound, manufacture, salt, derivative, mixture, or preparation of the plant, its seeds, or resin. "*Cannabis*" also means the separated resin, whether crude or purified, obtained from cannabis. "*Cannabis*" also means marijuana as defined by Section 11018 of the Health and Safety Code, as may be amended, as enacted by Chapter 1407 of the Statutes of 1972. The term "*cannabis*" shall also have the same meaning as set forth in Section 19300.5(f) of the California Business and Professions Code, as may be amended from time to time. "*Cannabis*" does not include the mature stalks of the plant, fiber produced from the stalks, oil or cake made from the seeds of the plant, any other compound, manufacture, salt, derivative, mixture, or preparation of the mature stalks (except the resin extracted therefrom), fiber, oil, or cake, or the sterilized seed of the plant which is incapable of germination. For the purpose of this chapter, "*cannabis*" does not mean "*industrial hemp*" as defined by Section 81000 of the Food and Agricultural Code or Section 11018.5 of the Health and Safety Code, as may be amended.
 - (2) "*Cannabis cultivation*" shall mean any activity involving the planting, growing, harvesting, drying, curing, grading, or trimming of cannabis, and shall also include the possession, manufacturing, processing, storing, laboratory testing, transporting, distribution, delivery, or sale of cannabis, whether all or any combination of those activities, and whether for medical or non-medical purposes or sale.
 - (3) "*Cannabis dispensary*" shall mean a facility or location, whether fixed or mobile, where cannabis or cannabis products are offered, made available to, or provided, either individually, or in any combination, with or without remuneration, for medical purposes or otherwise. A dispensary includes those facilities defined as "*dispensary*" by Business and Professions Code section 19300.5, as enacted, or as hereafter amended. Cannabis dispensary or marijuana dispensary shall also mean "*Retailer*" and "*Distributor*" and "*Microbusiness*" as defined by Business and Professions Code section 26070, as enacted, or as hereafter amended.

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- (4) "*Commercial Cannabis activity*" includes the cultivation, manufacture, distribution, processing, storing, laboratory testing, packaging, labeling, transportation, delivery or sale of cannabis and cannabis products whether for medical or non-medical purposes.
 - (5) "*Commercial cannabis cultivation*" or "*Commercial marijuana cultivation*" shall mean cannabis cultivation, as defined in this section, for commercial use or purposes, and whether for medical or non-medical purposes. For the purpose of this subsection, "processing" (as contained in the definition of cannabis cultivation) shall mean any method used to prepare cannabis or its by-products for commercial retail and/or wholesale sale, including without limitation drying, cleaning, curing, packaging, and extraction of active ingredients to create cannabis products or cannabis-related products and concentrates.
 - (6) "*Cannabis products*" shall mean cannabis that has undergone a process whereby the plant material has been transformed into concentrate, including, but not limited to, concentrated cannabis, edible or topical product containing cannabis or concentrated cannabis and other ingredients.
 - (7) "*Delivery*" shall mean the commercial transfer of cannabis or cannabis products to a customer whether for medical or non-medical purposes. "Delivery" also includes the use by a retailer of any technology platform owned and controlled by the retailer.
 - (8) "*Distribution*" means the procurement, sale, and transport of cannabis and cannabis products between licensees whether for medical or non-medical purposes.
 - (9) "*License*" means a state license issued under the Medicinal and Adult-Use Cannabis Regulation and Safety Act, Business and Professions Code, section 26000, et seq, as may be amended.
 - (10) *Manufacture* means to compound, blend, extract, infuse, or otherwise make or prepare a cannabis product whether for medical or non-medical purposes.
 - (11) "*Manufacturer*" means the production, preparation, propagation, or compounding of cannabis or cannabis products either directly or indirectly or by extraction methods, or independently by means of chemical synthesis, or by a combination of extraction and chemical synthesis at a fixed location that packages or repackages cannabis or cannabis products, or labels or relabels its container.
 - (12) "*Operation*" means any act encompassing commercial cannabis activity, as defined herein, or any commercial transfer of cannabis or cannabis products.
 - (13) "*Personal cannabis cultivation*" or "*Personal marijuana cultivation*" shall mean cannabis cultivation for personal use, medicinal use, or purposes in accordance with all applicable State laws.
 - (14) "*Testing Laboratory*" means a laboratory, facility or entity that offers or performs tests of cannabis or cannabis products.
- (b) *Prohibited activities.*
- (1) A cannabis dispensary, as defined in this chapter, is expressly prohibited and not an allowable activity within any zoning district within unincorporated areas of Orange County.

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- (2) Commercial cannabis cultivation, as defined in this chapter, is expressly prohibited and not an allowable activity within any zoning district within unincorporated areas of Orange County.
 - (3) Delivery services shall not locate their distribution center within any zoning district within unincorporated areas of Orange County.
 - (4) A Manufacturer, as defined in this chapter, is expressly prohibited and not an allowable activity within any zoning district within unincorporated areas of Orange County.
 - (5) Testing Laboratories, as defined in this chapter, are expressly prohibited and not an allowable activity within any zoning district within unincorporated areas of Orange County.
 - (6) Personal cannabis cultivation, as defined in this chapter, shall not exceed the number of living plants permitted by California Health and Safety Code Sections 11362.1 and 11362.2, as may be amended. Personal cannabis cultivation is limited solely to inside a person's private residence, or inside an accessory structure to a private residence located on the grounds of the private residence, that is fully enclosed and secure. Personal cannabis cultivation is expressly prohibited outdoors upon the grounds of any private residence or any other outdoor location within unincorporated.
- (c) *Public Nuisance.* Any activity or condition caused, or permitted to exist, in violation of any provision of this chapter shall be, and is hereby declared to be, a public nuisance and may be summarily abated by the County pursuant to Section 731, as may be amended, of the California Code of Civil Procedure or any other remedy available at law.
- (d) *Violations.*
- (1) In addition to any other remedies permitted by this chapter or available at law, County Counsel may assist the Director in seeking an inspection and nuisance abatement warrant allowing County personnel or a private contractor hired for that purpose by the County to abate a public nuisance caused by a violation of this chapter.
 - (2) In addition to any other remedies permitted by this chapter or available at law, County Counsel may refer cases involving unlicensed commercial activity to the Attorney General to undertake civil enforcement action as authorized by Government Code section 53069.4, Business and Professions Code section 26038, as may be amended, or any other applicable law.
 - (3) In addition to any other remedies permitted by this chapter or available at law, the County Counsel may bring a civil action for injunctive relief and civil penalties against any person who violates any provision of this chapter. In any civil action that is brought pursuant to this chapter, a court of competent jurisdiction may award civil penalties and costs to the prevailing party.
 - (4) Any violation of this chapter shall be a misdemeanor, punishable as provided by State law.

(Ord. No. 20-006 , § 1, 7-28-20)

This ordinance shall take effect and to be in full force thirty (30) days from and after its passage and, before the expiration of fifteen (15) days after the passage thereof, shall be published once in an adjudicated newspaper published in the County of Orange.

THE FOREGOING was PASSED and ADOPTED by the following vote of the Orange County Board of Supervisors on February 24, 2026 to wit:

This Ordinance was adopted by the following vote:

AYES: Supervisors: KATRINA FOLEY, DONALD P. WAGNER, JANET NGUYEN, VICENTE SARMIENTO, DOUG CHAFFEE

NOES:

EXCUSED:

ABSTAINED:

Copies of the full text of the proposed Ordinance are available at the Office of the Clerk of the Board of Supervisors, 400 W. Civic Center Dr., 6th Floor, Santa Ana, CA.

(Signature on file)

Robin Stieler, Clerk of the Orange County Board of Supervisors.